

STATE OF IOWA
BEFORE THE BOARD OF BEHAVIORAL SCIENCE EXAMINERS

_____	)	
IN THE MATTER OF:	)	Case No: 00-002
	)	
WILLIAM C. HART,	)	COMBINED STATEMENT OF
License No: 131-00398	)	CHARGES, INFORMAL
	)	SETTLEMENT AGREEMENT,
RESPONDENT.	)	AND CONSENT ORDER
_____	)	

The Iowa Board of Behavioral Science Examiners (Board) and William C. Hart (Respondent) enter into this Combined Statement of Charges, Informal Settlement Agreement, and Consent Order (Agreement) pursuant to Iowa Code Sections 17A.10(2), 272C.3(4) (1999), and Chapter 645 Iowa Administrative Code Section 12.1.

1. The Respondent presently possesses license number 131-00398 to practice mental health counseling in the State of Iowa. Board records indicate that the Respondent currently resides at 1331 N. Van Buren, Ottumwa, Iowa 52501.

2. The Board has jurisdiction of this matter pursuant to Iowa Code chapters 17A, 154D, and 272C (1999). Licenses issued by the Board are subject to the laws of the State of Iowa and the administrative rules promulgated by the Board.

STATEMENT OF CHARGES

COUNT I

3. Respondent is charged with fraudulently procuring a license from the Board in violation of 645 Iowa Administrative Code 31.8(5). See Iowa Code §§ 147.55(1), 154D.3, 272C.10(1) (1999); 645 IAC 31.8.

CIRCUMSTANCES

4. On or about March 10, 1999, the Board received an application from the Respondent requesting licensure as a mental health counselor in the State of Iowa.

5. In his application for licensure, the Respondent represented to the Board that he had obtained a Master of Arts degree in 1998 from Loyola University in Chicago, Illinois.

6. On May 21, 1999, the Board issued the Respondent license number 131-00398 to practice mental health counseling in the State of Iowa.

7. The Respondent did not attend Loyola University in Chicago, Illinois, nor did the Respondent obtain a graduate degree from that institution as represented on his licensure application.

SETTLEMENT AGREEMENT

8. The Respondent does not contest before the Board the allegations of the above stated charges.

9. The Respondent has a right to receive notice of the charges and to request a hearing before the Board on the merits of the charges, but waives his right to notice and a hearing and all attendant rights, including the right to appeal, by freely and voluntarily entering into this Agreement. This Agreement shall constitute the Final Order of the Board in this case.

10. The Respondent agrees that the State's counsel may present this Agreement to the Board and may have ex parte communications with the Board while presenting it.

11. This Agreement shall be part of the permanent record of the Respondent and shall be considered by the Board in determining the nature and severity of any disciplinary action to be imposed in the event of future violations.

12. Any failure by the Respondent to comply with the terms and conditions of this Agreement shall subject the Respondent to further licensee disciplinary action which could be initiated by the Board through the filing of a Statement of Charges with a hearing to be held on the merits.

13. This Agreement is subject to approval by the Board:

- (a) If the Board fails to approve this Agreement, it shall be of no force or effect on either party, and it shall not be admissible for any purpose in further proceedings in this matter.
- (b) If the Board approves this Agreement, it shall fully dispose of all issues in this case.

14. This Agreement is public record pursuant to Iowa Code Sections 272C.3(4) and 272C.6(4) (1999).

15. This Agreement shall not be binding as to any new complaints received by the Board.

CONSENT ORDER

IT IS THEREFORE ORDERED:

16. The Respondent agrees to voluntarily surrender his license to practice mental health counseling in the State of Iowa and also agrees that pursuant to 645 Iowa Administrative Code Section 12.1(5), a voluntary surrender must be accompanied by a written statement of intention, and when accepted by the Board, shall have the same force and effect as an order of revocation.

17. The Respondent shall surrender his mental health counseling license to the Board within 60 days of the execution date of this Agreement. The execution date is that date which accompanies the Board Chairperson's signature.

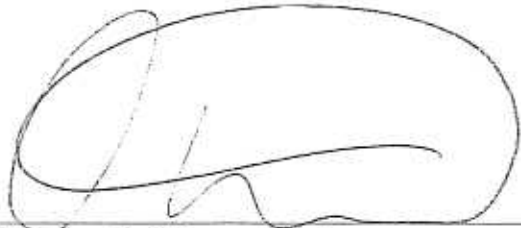
18. By voluntarily surrendering his license, the Respondent agrees not to engage in the practice of mental health counseling in the State of Iowa.

19. The Respondent agrees that should he ever seek reinstatement of his license to practice mental health counseling in the State of Iowa, such application shall be subject to the provisions of 645 Iowa Administrative Code Section 11.31. In any application for reinstatement, the Respondent shall be required to submit evidence that demonstrates to the Board's satisfaction that the basis for the surrender of Respondent's license no longer exists and that it will be in the public interest for the license to be reinstated. The Respondent shall bear the burden of proof establishing these facts.

WHEREFORE, the terms of this Statement of Charges, Informal Settlement Agreement, and Consent Order are agreed to and accepted by the Iowa Board of Behavioral Science Examiners and the Respondent.



William C. Hart
Respondent



Stanton L. Visser, Chairperson
Board of Behavioral Science Examiners

10-30-00

Date

11-17-00

Date

Ms. Judy Manning
Board Administrator
Iowa Board of Behavioral Science Examiners
Lucas State Office Building
Des Moines, IA 50319

Dear Ms. Manning:

You are hereby notified that in accordance with the provisions of 645 Iowa Administrative Code Section 12.1(5), this letter shall constitute my written statement of intention to voluntarily surrender license number 131-00398 to practice mental health counseling in the State of Iowa. You are further notified that I fully understand that upon the Board's acceptance of this voluntary surrender of my license, such acceptance shall have the same force and effect as an order of revocation.

You are further notified that I hereby affirm my decision not to engage in the practice of mental health counseling in the State of Iowa and I hereby absolve and release the Iowa Department of Public Health and the Iowa Board of Behavioral Science Examiners from any further right, claim, or title to the certificate of license and any of the rights, privileges, and honors pertaining thereto.

This written statement is my intention to voluntarily surrender my mental health counseling license and is being signed by me on this 30 day of Oct, 2000, as my own voluntary act and deed.



William C. Hart
Respondent



Witness